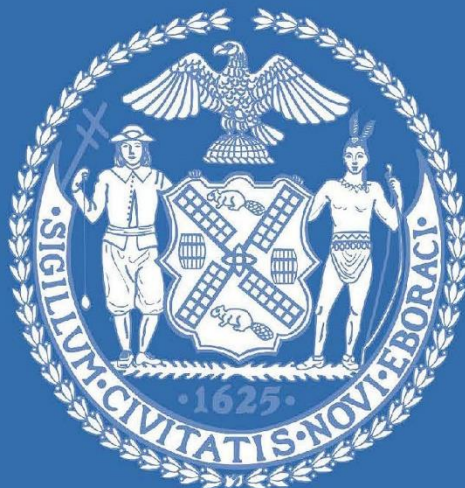


# CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor

JONATHAN DARCHIE, Esq. Executive Director



## *Administrative Prosecution Unit*

### 3<sup>rd</sup> Quarter 2024 Report

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## **ADMINISTRATIVE PROSECUTION UNIT BACKGROUND**

When the Board substantiates a misconduct allegation(s) and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case. A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

## **INTRODUCTION**

This report will address the following matters: (i) trial verdicts issued by an Assistant Deputy Commissioner of Trials ("ADCT"); (ii) the treatment of Administrative Prosecution Unit ("APU") pleas by the Police Commissioner ("PC"); (iii) the retention of cases under Provision Two of the April 2, 2012, Memorandum of Understanding ("MOU"); (iv) cases administratively closed by the Police Commissioner; (v) cases closed due to the statute of limitations ("SOL"); (vi) the size of the APU's docket; (vii) the time to serve Charges and Specifications on Respondents; and (viii) the discipline concurrence rate.

The report contains information concerning the following case closures in the third quarter of 2024: eighteen (18) trial verdicts, fifty-two (52) pleas, twenty-seven (27) retained cases, sixteen (16) PC administratively closed cases, and one (1) APU administratively closed cases. Finally, it includes information regarding the discipline and concurrence rates for the quarter which stand at 74% and 45% respectively.

## SECTION I: TRIALS

At the conclusion of an administrative trial, the presiding ADCT renders a finding of guilty or not guilty on each of the Charges and Specifications against the member(s) of service ("MOS").<sup>1</sup> For guilty verdicts, the ADCT recommends a penalty for each member of service involved in the case and the Police Commissioner either approves, modifies, or reverses the verdict and recommended penalty.<sup>2</sup> There is no penalty recommendation for not guilty verdicts. In the third quarter of 2024, the verdicts for eighteen (18) APU trials were finalized. The verdicts can be found below.

| COMPLAINT                                             | OFFICER          | CCRB SUBSTANTIATED ALLEGATIONS                     | APU RECOMMENDED PENALTY | ADCT DECISION & PC DECISION                                                                                                                                                                                                                                                                                                        |
|-------------------------------------------------------|------------------|----------------------------------------------------|-------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 201903743<br><a href="#">Read Closing Report Here</a> | PO Edwin Peguero | 1. Force - used physical force against the Victim. | Termination             | The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charge. The ADCT recommended ten (10) days' suspension and ten (10) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty.<br><br><a href="#">Read Final Documents Here</a> |

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<sup>1</sup> The APU treats each officer against whom an allegation is substantiated as a separate "case." As such, all APU data discussed in this report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

<sup>2</sup> As the final arbiter of discipline, the Police Commissioner can modify the ADCT penalty and/or reverse a verdict.

| <b>COMPLAINT</b>                                      | <b>OFFICER</b>     | <b>CCRB SUBSTANTIATED ALLEGATIONS</b>                                                                                                                                                                                                                                                       | <b>APU RECOMMENDED PENALTY</b>         | <b>ADCT DECISION &amp; PC DECISION</b>                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 201910097<br><a href="#">Read Closing Report Here</a> | PO Michael Gargano | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to remove the Victim to the hospital.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                    | Seven (7) days' vacation forfeiture    | <p>The ADCT rendered a guilty verdict on four (4) charges and a not guilty verdict the remaining charge. The ADCT recommended five (5) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                 |
| 201910097<br><a href="#">Read Closing Report Here</a> | PO Sorely Nunez    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to remove the Victim to the hospital.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> <li>3. Offensive Language - made remarks to the Victim based upon her perceived mental state.</li> </ol> | Sixteen (16) days' vacation forfeiture | <p>The ADCT rendered a guilty verdict on three (3) charges and a not guilty verdict the remaining charge. The ADCT recommended five (5) days' vacation forfeiture and retraining. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| <b>COMPLAINT</b>                                      | <b>OFFICER</b>     | <b>CCRB SUBSTANTIATED ALLEGATIONS</b>                                                                                                                                                                                                                                                                                                                                                                    | <b>APU RECOMMENDED PENALTY</b>     | <b>ADCT DECISION &amp; PC DECISION</b>                                                                                                                                                                                                                                             |
|-------------------------------------------------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202002001<br><a href="#">Read Closing Report Here</a> | PO Caner Sezer     | <ol style="list-style-type: none"> <li>1. Force - pointed his gun at the Victim.</li> <li>2. Abuse of Authority - threatened the Victim with the use of force.</li> <li>3. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                                                  | Ten (10) days' vacation forfeiture | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                                                            |
| 202100330<br><a href="#">Read Closing Report Here</a> | DTS Neil Narayan   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to explain to the Victim the reason for a law enforcement activity.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card</li> <li>3. Abuse of Authority - stopped the Victim.</li> </ol>                                                                                                             | Six (6) days' vacation forfeiture  | <p>The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charges. The ADCT recommended training. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202100330<br><a href="#">Read Closing Report Here</a> | PO Anthony Varrone | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to explain to the Victim the reason for a law enforcement activity.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - frisked the Victim.</li> <li>4. Abuse of Authority - searched the Victim.</li> <li>5. Abuse of Authority - stopped the Victim.</li> </ol> | Nine (9) days' vacation forfeiture | <p>The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charges. The ADCT recommended training. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| <b>COMPLAINT</b>                                      | <b>OFFICER</b>    | <b>CCRB SUBSTANTIATED ALLEGATIONS</b>                                                                                                                                                                                                                                                         | <b>APU RECOMMENDED PENALTY</b>     | <b>ADCT DECISION &amp; PC DECISION</b>                                                                                                                                  |
|-------------------------------------------------------|-------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202100330<br><a href="#">Read Closing Report Here</a> | LT Daniel Berardi | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to explain to the Victim the reason for a law enforcement activity.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - stopped the Victim.</li> </ol> | Six (6) days' vacation forfeiture  | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202101971<br><a href="#">Read Closing Report Here</a> | PO Robert Wilson  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - interfered with Victim 1's use of a recording device.</li> <li>2. Discourtesy - acted discourteously toward Victim 2.</li> </ol>                                                                                               | Ten (10) days' vacation forfeiture | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202102148<br><a href="#">Read Closing Report Here</a> | DI Omar Birchwood | <ol style="list-style-type: none"> <li>1. Force - used physical force against Victim 1.</li> <li>2. Force - used physical force against Victim 2.</li> <li>3. Abuse of Authority - entered Victim 1's home.</li> </ol>                                                                        | Ten (10) days' vacation forfeiture | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER           | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                    | APU RECOMMENDED PENALTY                | ADCT DECISION & PC DECISION                                                                                                                                                                                                                                                         |
|-------------------------------------------------------|-------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202103114<br><a href="#">Read Closing Report Here</a> | PO Joshua Ganshaw | <ol style="list-style-type: none"> <li>1. Force - pointed his gun at the Victim.</li> <li>2. Abuse of Authority - frisked the Victim.</li> <li>3. Abuse of Authority - searched the Victim.</li> <li>4. Abuse of Authority - searched the vehicle in which the Victim was an occupant.</li> </ol> | Termination                            | <p>The ADCT rendered a guilty verdict on two (2) charges and a not guilty verdict on the remaining charges. The ADCT recommended training. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202103114<br><a href="#">Read Closing Report Here</a> | PO Adam Pawelic   | <ol style="list-style-type: none"> <li>1. Force - pointed his gun at the Victim.</li> </ol>                                                                                                                                                                                                       | Termination                            | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                                                             |
| 202103776<br><a href="#">Read Closing Report Here</a> | LT James Lee      | <ol style="list-style-type: none"> <li>1. Abuse of Authority - took a recording of the Victim.</li> <li>2. Abuse of Authority - took a recording of individuals.</li> </ol>                                                                                                                       | Fifteen (15) days' vacation forfeiture | <p>The ADCT rendered a guilty verdict on all charges. The ADCT recommended twenty (20) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                          |



| COMPLAINT                                             | OFFICER               | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                 | APU RECOMMENDED PENALTY               | ADCT DECISION & PC DECISION                                                                                                                                                                                                                                                                                     |
|-------------------------------------------------------|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202107193<br><a href="#">Read Closing Report Here</a> | Chief Jeffrey Maddrey | 1. Abuse of Authority - improperly influenced an arrest.                                                                                                                                                                                                       | Twenty (20) days' vacation forfeiture | The DCT dismissed all charges. The Police Commissioner approved the dismissal.<br><br><a href="#">Read Final Documents Here</a>                                                                                                                                                                                 |
| 202107688<br><a href="#">Read Closing Report Here</a> | PO Matthew Bessen     | 1. Abuse of Authority - entered the Victim's home.<br>2. Abuse of Authority - failed to provide the Victim with a business card.<br>3. Abuse of Authority - searched the Victim's home.<br>4. Abuse of Authority - threatened to damage the Victim's property. | Twenty (20) days' vacation forfeiture | The ADCT rendered a guilty verdict on four (4) charges and a not guilty verdict on the remaining charge. The ADCT recommended twenty-three (23) days' vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty.<br><br><a href="#">Read Final Documents Here</a> |
| 202107861<br><a href="#">Read Closing Report Here</a> | PO Peter Kim          | 1. Force - pointed his gun at Victim 1.<br>2. Force - pointed his gun at Victim 2.<br>3. Abuse of Authority - failed to provide Victim 1 with a business card.                                                                                                 | One (1) year dismissal probation      | The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charges. The ADCT recommended one (1) day vacation forfeiture. The Police Commissioner approved the guilty verdict and did not modify the penalty.<br><br><a href="#">Read Final Documents Here</a>              |

| <b>COMPLAINT</b>                                      | <b>OFFICER</b>     | <b>CCRB SUBSTANTIATED ALLEGATIONS</b>                                                                                                                                                | <b>APU RECOMMENDED PENALTY</b>        | <b>ADCT DECISION &amp; PC DECISION</b>                                                                                                                                                                                                 |
|-------------------------------------------------------|--------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202200576<br><a href="#">Read Closing Report Here</a> | PO Matthew Bessen  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened the Victim with the use of force.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol> | Twenty (20) days' vacation forfeiture | <p>The ADCT rendered a guilty verdict on one (1) charge and a not guilty verdict on the remaining charge. The ADCT recommendation is included as part of CCRB Case No. 202107688.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202202712<br><a href="#">Read Closing Report Here</a> | LT Ryan Murphy     | <ol style="list-style-type: none"> <li>1. Abuse of Authority - issued an unlawful summons to the Victim.</li> </ol>                                                                  | Ten (10) days' vacation forfeiture    | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                |
| 202203555<br><a href="#">Read Closing Report Here</a> | DT3 Edward Reardon | <ol style="list-style-type: none"> <li>1. Abuse of Authority - detained the Victim.</li> <li>2. Abuse of Authority - seized the Victim's property.</li> </ol>                        | Six (6) days' vacation forfeiture     | <p>The ADCT rendered a not guilty verdict on all charges. The Police Commissioner approved the not guilty verdict.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                |

## SECTION II: PLEAS

In lieu of a trial, the MOS can reach a plea agreement with the APU. This agreement must be approved by both the ADCT and the Police Commissioner. The APU uses several factors to determine plea recommendations, including, but not limited to, MOS length of service, MOS rank, MOS disciplinary history, the facts of the case, the strength of the case, vulnerability of the victim, the extent of any injury, the number of complainants, precedent from cases involving analogous charges, and the delineated penalty categories from the New York City Police Department's ("NYPD") Disciplinary Matrix. In the third quarter of 2024, the APU finalized fifty-two (52) plea agreements.

| COMPLAINT                                             | OFFICER             | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                  | PLEA AGREEMENT                                                                                                                                                                                             |
|-------------------------------------------------------|---------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 201901999<br><a href="#">Read Closing Report Here</a> | PO Malachi Mckenith | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against the Victim.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol> | <p>The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 201905171<br><a href="#">Read Closing Report Here</a> | PO Malachi Mckenith | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against the Victim.</li> </ol>                                                               | <p>The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 201908894<br><a href="#">Read Closing Report Here</a> | LT Ayotunde Adeniyi | <ol style="list-style-type: none"> <li>1. Abuse of Authority - frisked the Victim.</li> <li>2. Abuse of Authority - stopped the Victim.</li> </ol>              | <p>The officer pled guilty and accepted Training. The Police Commissioner approved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>                                |

| COMPLAINT                                                                                  | OFFICER               | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                    | PLEA AGREEMENT                                                                                                                                                                                                                          |
|--------------------------------------------------------------------------------------------|-----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 201910019<br><a href="#">Read Closing Report Here</a>                                      | LT Frank Laquidara    | 1. Force - used physical force against the Victim.                                                                                                                                                                                                                | The officer pled guilty and accepted five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.<br><br><a href="#">Read Final Documents Here</a>                                     |
| 201910389<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Marcos Rodriguez   | 1. Force - used physical force against the Victim.<br>2. Abuse of Authority - stopped the Victim.                                                                                                                                                                 | The officer pled guilty and accepted one (1) day vacation forfeiture. The Police Commissioner disapproved the plea and modified the penalty to formalized training.<br><br><a href="#">Read Final Documents Here</a>                    |
| 202000469<br><a href="#">Read Closing Report Here</a>                                      | SGT Alberto Pizarro   | 1. Force - pointed his gun at the Victim.<br>2. Abuse of Authority - searched the vehicle in which the Victim was an occupant.<br>3. Abuse of Authority - threatened to arrest the Victim.<br>4. Abuse of Authority - threatened to damage the Victim's property. | The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to three (3) days' vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a> |
| 202000924<br><a href="#">Read Closing Report Here</a>                                      | PO Christopher Bracco | 1. Abuse of Authority - failed to provide Victim 1 with a business card.<br>2. Abuse of Authority - failed to provide Victim 2 with a business card.<br>3. Discourtesy - spoke discourteously to Victim 1.<br>4. Discourtesy - spoke discourteously to Victim 2.  | The officer pled guilty and accepted Command Discipline B with eight (8) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.<br><br><a href="#">Read Final Documents Here</a>          |

| COMPLAINT                                             | OFFICER               | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                       | PLEA AGREEMENT                                                                                                                                                                                                                                   |
|-------------------------------------------------------|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202001154<br><a href="#">Read Closing Report Here</a> | PO Jonathan Acquaviva | <ol style="list-style-type: none"> <li>1. Abuse of Authority - issued a summons to the Victim.</li> <li>2. Abuse of Authority - threatened the Victim with the use of force.</li> </ol>                                                                                                                                                                              | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>             |
| 202001757<br><a href="#">Read Closing Report Here</a> | SGT John Zorrilla     | <ol style="list-style-type: none"> <li>1. Force - used a taser against the Victim.</li> <li>2. Force - used pepper spray against the Victim.</li> </ol>                                                                                                                                                                                                              | <p>The officer pled guilty and accepted fifteen (15) days' suspension and fifteen (15) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202002167<br><a href="#">Read Closing Report Here</a> | PO Amet Vrzivoli      | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to arrest Victim 1.</li> <li>2. Abuse of Authority - threatened to arrest Victim 2.</li> <li>3. Abuse of Authority - threatened to arrest Victim 3.</li> <li>4. Abuse of Authority - threatened to arrest Victim 4.</li> <li>5. Discourtesy - spoke discourteously to Victim 1.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with nine (9) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>             |

| COMPLAINT                                             | OFFICER             | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                          | PLEA AGREEMENT                                                                                                                                                                                                                                                                                                               |
|-------------------------------------------------------|---------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202002458<br><a href="#">Read Closing Report Here</a> | SGT Carlos Santiago | <ol style="list-style-type: none"> <li>1. Abuse of Authority - stopped the Victim.</li> <li>2. Abuse of Authority - threatened to arrest the Victim.</li> </ol>                                                                                                                                                                                                                                         | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                                         |
| 202002669<br><a href="#">Read Closing Report Here</a> | DT3 Merita Hoxha    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - frisked the Victim.</li> <li>3. Abuse of Authority - refused to provide her name to the Victim.</li> <li>4. Abuse of Authority - refused to provide her shield number to the Victim.</li> <li>5. Abuse of Authority - stopped the Victim.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002792. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202002669<br><a href="#">Read Closing Report Here</a> | PO Dennis Vargas    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - frisked the Victim.</li> <li>3. Abuse of Authority - refused to provide his name to the Victim.</li> <li>4. Abuse of Authority - refused to provide his shield number to the Victim.</li> <li>5. Abuse of Authority - stopped the Victim.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002792. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                          | PLEA AGREEMENT                                                                                                                                                                                                                                                                                                               |
|-------------------------------------------------------|--------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202002669<br><a href="#">Read Closing Report Here</a> | DT3 Anthony Alvino | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - frisked the Victim.</li> <li>3. Abuse of Authority - refused to provide his name to the Victim.</li> <li>4. Abuse of Authority - refused to provide his shield number to the Victim.</li> <li>5. Abuse of Authority - stopped the Victim.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with six (6) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002792. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202002792<br><a href="#">Read Closing Report Here</a> | PO Dennis Vargas   | <ol style="list-style-type: none"> <li>1. Untruthful Statement - provided a misleading official statement to the CCRB.</li> </ol>                                                                                                                                                                                                                                                                       | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002669. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>  |

| COMPLAINT                                             | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                  | PLEA AGREEMENT                                                                                                                                                                                                                                                                                                       |
|-------------------------------------------------------|--------------------|---------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202002792<br><a href="#">Read Closing Report Here</a> | DT3 Anthony Alvino | 1. Untruthful Statement - provided a misleading official statement to the CCRB. | The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002669. The Police Commissioner disapproved the plea and dismissed the charges.<br><br><a href="#">Read Final Documents Here</a> |
| 202002792<br><a href="#">Read Closing Report Here</a> | DT3 Merita Hoxha   | 1. Untruthful Statement - provided a misleading official statement to the CCRB. | The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The penalty was to run concurrently with the penalty issued for CCRB Case No. 202002669. The Police Commissioner disapproved the plea and dismissed the charges.<br><br><a href="#">Read Final Documents Here</a> |



| COMPLAINT                                             | OFFICER                  | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                    | PLEA AGREEMENT                                                                                                                                                                                                                       |
|-------------------------------------------------------|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202003813<br><a href="#">Read Closing Report Here</a> | SGT Bilal Ates           | <ol style="list-style-type: none"> <li>1. Force - hit the Victim against the ground.</li> <li>2. Force - used physical force against an individual.</li> </ol>                                                                                                                                                                                    | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>   |
| 202003860<br><a href="#">Read Closing Report Here</a> | SGT Christopher Hewitson | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority - damaged the Victim's property.</li> <li>3. Abuse of Authority - interfered with the Victim's use of a recording device.</li> <li>4. Untruthful Statement - provided a false official statement to the CCRB.</li> </ol> | <p>The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                        |
| 202005678<br><a href="#">Read Closing Report Here</a> | PO Oshane Cole           | <ol style="list-style-type: none"> <li>1. Discourtesy - spoke discourteously to an individual.</li> <li>2. Offensive Language - made remarks to an individual based upon the gender of an individual.</li> </ol>                                                                                                                                  | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202100584<br><a href="#">Read Closing Report Here</a> | PO Daniel Coy            | <ol style="list-style-type: none"> <li>1. Abuse of Authority - interfered with the Victim's use of a recording device.</li> <li>2. Abuse of Authority - threatened to arrest the Victim.</li> </ol>                                                                                                                                               | <p>The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                     |

| COMPLAINT                                                                                  | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                          | PLEA AGREEMENT                                                                                                                                                                                                                       |
|--------------------------------------------------------------------------------------------|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202101774<br><a href="#">Read Closing Report Here</a>                                      | PO Robert Desena   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered Victim 1 and Victim 2' home.</li> <li>2. Abuse of Authority - refused to provide his name to Victim 2.</li> <li>3. Abuse of Authority - searched Victim 1 and Victim 2' home.</li> <li>4. Discourtesy - spoke discourteously to Victim 1.</li> <li>5. Discourtesy - spoke discourteously to Victim 2.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202102148<br><a href="#">Read Closing Report Here</a>                                      | SGT Frantz Chauvet | <ol style="list-style-type: none"> <li>1. Force - used physical force against Victim 2.</li> <li>2. Abuse of Authority - arrested Victim 2 unlawfully.</li> <li>3. Abuse of Authority - entered Victim 1's home.</li> </ol>                                                                                                                                                             | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202102984<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | DTS Robert Semioli | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's home.</li> <li>2. Abuse of Authority - searched the Victim's home.</li> </ol>                                                                                                                                                                                                                       | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                                                                  | OFFICER                | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                       | PLEA AGREEMENT                                                                                                                                                                                                                       |
|--------------------------------------------------------------------------------------------|------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202102984<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | DT3 Nicholas Bacarella | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's home.</li> <li>2. Abuse of Authority - searched the Victim's home.</li> </ol>                                                                                                    | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202103086<br><a href="#">Read Closing Report Here</a>                                      | PO Sung Kim            | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's home.</li> <li>2. Abuse of Authority - failed to obtain language interpretation services for the Victim.</li> </ol>                                                              | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202103086<br><a href="#">Read Closing Report Here</a>                                      | PO Fidney Moise        | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's home.</li> <li>2. Abuse of Authority - failed to obtain language interpretation services for the Victim.</li> <li>3. Abuse of Authority - searched the Victim's home.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER             | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                  | PLEA AGREEMENT                                                                                                                                                                                                                                                                            |
|-------------------------------------------------------|---------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202103678<br><a href="#">Read Closing Report Here</a> | LT Gabriel Cuevas   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - frisked the Victim.</li> <li>3. Discourtesy - spoke discourteously to the Victim.</li> </ol> | <p>The officer pled guilty and accepted ten (10) days' vacation forfeiture. The penalty runs concurrently with the penalty issued for CCRB Case No. 202205361. The Police Commissioner approved the plea and not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202104006<br><a href="#">Read Closing Report Here</a> | SGT Manuel Martinez | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> </ol>                                                                                                                                            | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                      |
| 202104459<br><a href="#">Read Closing Report Here</a> | PO Luigi Tirro      | <ol style="list-style-type: none"> <li>1. Discourtesy - spoke discourteously to the Victim.</li> <li>2. Offensive Language - made remarks to the Victim based upon ethnicity.</li> </ol>                                                        | <p>The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and modified the penalty to fifteen (15) days' vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p>                                         |

| COMPLAINT                                             | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                    | PLEA AGREEMENT                                                                                                                                                                                                                       |
|-------------------------------------------------------|--------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202104849<br><a href="#">Read Closing Report Here</a> | SGT Angel Gonzalez | <ol style="list-style-type: none"> <li>1. Force - At the 46th Precinct stationhouse, hit the Victim against a partition.</li> <li>2. Force - used physical force against the Victim.</li> </ol>                                   | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202105273<br><a href="#">Read Closing Report Here</a> | DT2 Edelman Santos | <ol style="list-style-type: none"> <li>1. Abuse of Authority - damaged the Victim's property.</li> <li>2. Abuse of Authority - entered the Victim's home.</li> <li>3. Abuse of Authority - searched the Victim's home.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202105273<br><a href="#">Read Closing Report Here</a> | SGT Alexander Rapp | <ol style="list-style-type: none"> <li>1. Abuse of Authority - damaged the Victim's property.</li> <li>2. Abuse of Authority - entered the Victim's home.</li> <li>3. Abuse of Authority - searched the Victim's home.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202105545<br><a href="#">Read Closing Report Here</a> | PO James Talbert   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - refused to provide his shield number to the Victim.</li> <li>2. Untruthful Statement - provided a false official statement to the CCRB.</li> </ol>                 | <p>The officer pled guilty and accepted ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                           |

| COMPLAINT                                                                                  | OFFICER             | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                                  | PLEA AGREEMENT                                                                                                                                                                                                                       |
|--------------------------------------------------------------------------------------------|---------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202105736<br><a href="#">Read Closing Report Here</a>                                      | PO Mark Gaiardelli  | <ol style="list-style-type: none"> <li>1. Discourtesy - spoke discourteously to Victim 1 and Victim 2.</li> <li>2. Untruthful Statement - provided a misleading official statement to the CCRB.</li> <li>3. Offensive Language - made remarks to Victim 1 and Victim 2 based upon race.</li> </ol>                                                                                                              | <p>The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                        |
| 202106081<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | SGT Joanna Barletta | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened Victim 1 with the use of force.</li> <li>2. Abuse of Authority - threatened Victim 2 with the use of force.</li> <li>3. Abuse of Authority - threatened Victim 3 with the use of force.</li> </ol>                                                                                                                                    | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>   |
| 202106267<br><a href="#">Read Closing Report Here</a>                                      | PO Nicole Krauss    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to remove the Victim to the hospital.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                                                                                                        | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202107240<br><a href="#">Read Closing Report Here</a>                                      | PO Marc Fontana     | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority - damaged the Victim's property.</li> <li>3. Abuse of Authority - interfered with the Victim's use of a recording device.</li> <li>4. Discourtesy - spoke discourteously to the Victim.</li> <li>5. Untruthful Statement - provided a false official statement to the CCRB.</li> </ol> | <p>The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                        |

| COMPLAINT                                             | OFFICER               | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                            | PLEA AGREEMENT                                                                                                                                                                                                                       |
|-------------------------------------------------------|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202200238<br><a href="#">Read Closing Report Here</a> | SGT Matthew Fried     | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                                                                                                                        | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202200388<br><a href="#">Read Closing Report Here</a> | DT3 Jonathan Trahan   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - searched the vehicle in which the Victim was an occupant.</li> <li>2. Abuse of Authority - strip-searched the Victim.</li> <li>3. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                             | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202201047<br><a href="#">Read Closing Report Here</a> | PO Charlie Ruiz-Reyes | <ol style="list-style-type: none"> <li>1. Abuse of Authority - refused to provide his name to Victim 1.</li> <li>2. Abuse of Authority - refused to provide his shield number to Victim 1.</li> <li>3. Abuse of Authority - threatened Victim 1 with the use of force.</li> <li>4. Discourtesy - spoke discourteously to Victim 1.</li> <li>5. Discourtesy - spoke discourteously to Victim 2.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with five (5) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>   |

| COMPLAINT                                             | OFFICER           | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                        | PLEA AGREEMENT                                                                                                                                                                                                                        |
|-------------------------------------------------------|-------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202201246<br><a href="#">Read Closing Report Here</a> | LT David Pabon    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's home.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - searched the Victim's home.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline B with five (5) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>  |
| 202202489<br><a href="#">Read Closing Report Here</a> | PO Steven Cortes  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to remove the Victim to the hospital.</li> </ol>                                                                                                                            | <p>The officer pled guilty and accepted training. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                      |
| 202203651<br><a href="#">Read Closing Report Here</a> | LT Jose Deschamps | <ol style="list-style-type: none"> <li>1. Abuse of Authority - arrested Victim 1 unlawfully.</li> <li>2. Abuse of Authority - arrested Victim 2 unlawfully.</li> <li>3. Abuse of Authority - detained Victim 3.</li> </ol>                            | <p>The officer pled guilty and accepted Command Discipline B with eight (8) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202203988<br><a href="#">Read Closing Report Here</a> | SGT Seungwoo Seo  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - interfered with the Victim's use of a recording device.</li> </ol>                                                                                                                     | <p>The officer pled guilty and accepted Command Discipline A with five (5) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>    |



| COMPLAINT                                                                                  | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                         | PLEA AGREEMENT                                                                                                                                                                                                                                                                            |
|--------------------------------------------------------------------------------------------|--------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202204823<br><a href="#">Read Closing Report Here</a>                                      | PO Brian Dietzel   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - issued a retaliatory summons to the Victim.</li> <li>2. Abuse of Authority - issued an unlawful summons to the Victim.</li> <li>3. Abuse of Authority - issued retaliatory summonses to the Victim.</li> <li>4. Abuse of Authority - provided a false official statement against the Victim.</li> </ol> | <p>The officer pled guilty and accepted twenty (20) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                                             |
| 202205361<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | LT Gabriel Cuevas  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - arrested the Victim unlawfully.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> </ol>                                                                                                                                                                          | <p>The officer pled guilty and accepted ten (10) days' vacation forfeiture. The penalty runs concurrently with the penalty issued for CCRB Case No. 202103678. The Police Commissioner approved the plea and not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202208135<br><a href="#">Read Closing Report Here</a>                                      | SGT Andres Toribio | <ol style="list-style-type: none"> <li>1. Abuse of Authority - arrested the Victim unlawfully.</li> <li>2. Abuse of Authority - searched the vehicle in which the Victim was an occupant.</li> </ol>                                                                                                                                                                   | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p>                                                      |

| COMPLAINT                                                                                  | OFFICER          | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                 | PLEA AGREEMENT                                                                                                                                                                                                                       |
|--------------------------------------------------------------------------------------------|------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202208240<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | DTS Alex Cruz    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - sexually humiliated the Victim through failure to cover inside the 102nd Precinct station house.</li> <li>2. Abuse of Authority - strip-searched the Victim inside the 102nd Precinct station house.</li> </ol> | <p>The officer pled guilty and accepted fifteen (15) days' vacation forfeiture. The Police Commissioner disapproved the plea and dismissed the charges.</p> <p><a href="#">Read Final Documents Here</a></p>                         |
| 202208613<br><a href="#">Read Closing Report Here</a>                                      | PO Brendan Dono  | <ol style="list-style-type: none"> <li>1. Offensive Language - spoke offensively regarding the Victim's actual or perceived disability.</li> </ol>                                                                                                                             | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202300597<br><a href="#">Read Closing Report Here</a>                                      | SGT Jose Holguin | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to remove the Victim to the hospital.</li> <li>2. Offensive Language - made offensive remarks to the Victim.</li> </ol>                                                                              | <p>The officer pled guilty and accepted Command Discipline B with ten (10) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER           | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                | PLEA AGREEMENT                                                                                                                                                                                                                        |
|-------------------------------------------------------|-------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202302060<br><a href="#">Read Closing Report Here</a> | PO Debbie Jimenez | <ol style="list-style-type: none"> <li>1. Abuse of Authority - refused to provide her name to the Victim.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - improperly used her body-worn camera.</li> <li>4. Discourtesy - spoke discourteously to the Victim.</li> </ol> | <p>The officer pled guilty and accepted Command Discipline A with three (3) days' vacation forfeiture. The Police Commissioner approved the plea and did not modify the penalty.</p> <p><a href="#">Read Final Documents Here</a></p> |

### SECTION III: RETAINED CASES

The Police Commissioner can retain a case, which means that the case is removed from the APU, in accordance with Provision Two of the MOU,<sup>3</sup> which states that:

in those limited circumstances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

After a case is retained, the Police Commissioner can decide whether or not to impose discipline on an officer. In the third quarter of 2024, the Police Commissioner retained twenty-seven (27) cases.

| COMPLAINT                                             | OFFICER         | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                       | REASON FOR RETAINMENT                                                                                                               |
|-------------------------------------------------------|-----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| 202003690<br><a href="#">Read Closing Report Here</a> | DT3 Raul Torres | 1. Force - used a non-lethal restraining device on Victim 1.<br>2. Abuse of Authority - entered Victim 1 and Victim 2's home.<br>3. Abuse of Authority - seized Victim 2's property. | The Police Commissioner retained the case and issued no discipline to the officer.<br><br><a href="#">Read Final Documents Here</a> |

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<sup>3</sup> [https://www.nyc.gov/assets/ccrb/downloads/pdf/about\\_pdf/apu\\_mou.pdf](https://www.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf)

| COMPLAINT                                                                                  | OFFICER              | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 | REASON FOR RETAINMENT                                                                                                                                          |
|--------------------------------------------------------------------------------------------|----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202003791<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Sokol Karaduzovic | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against the Victim.</li> <li>2. Force - used physical force against individuals.</li> <li>3. Force - used physical force against the Victim.</li> <li>4. Abuse of Authority - threatened individuals with the use of force.</li> <li>5. Abuse of Authority - threatened the Victim with the use of force.</li> <li>6. Discourtesy - acted discourteously toward an individual.</li> <li>7. Discourtesy - spoke discourteously to an individual.</li> <li>8. Discourtesy - spoke discourteously to the Victim and individuals.</li> <li>9. Offensive Language - made remarks to the Victim and individuals based upon his gender.</li> </ol> | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                     |
| 202004061<br><a href="#">Read Closing Report Here</a>                                      | PO John Kopp         | <ol style="list-style-type: none"> <li>1. Force - inside the 42nd Precinct stationhouse, used a chokehold against the Victim.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                     |
| 202004061<br><a href="#">Read Closing Report Here</a>                                      | PO Joseph Mesaris    | <ol style="list-style-type: none"> <li>1. Force - inside the 42nd Precinct stationhouse, used a chokehold against the Victim.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                     |
| 202208570<br><a href="#">Read Closing Report Here</a>                                      | SGT George Tavares   | <ol style="list-style-type: none"> <li>1. Discourtesy -spoke discourteously to an individual.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER               | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                      | REASON FOR RETAINMENT                                                                                                                                                                                   |
|-------------------------------------------------------|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202208866<br><a href="#">Read Closing Report Here</a> | SGT Michael Nolasco   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - interfered with the Victim's use of a recording device.</li> <li>3. Abuse of Authority - threatened to issue summons to the Victim.</li> <li>4. Abuse of Authority - took a photograph of the Victim.</li> </ol> | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                                                              |
| 202300350<br><a href="#">Read Closing Report Here</a> | PO Lester Haynes      | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - improperly used their body-worn camera.</li> <li>3. Abuse of Authority - threatened to issue summons to the Victim.</li> </ol>                                                                                   | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days' vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p>  |
| 202300421<br><a href="#">Read Closing Report Here</a> | DTS Matthew Panik     | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against the Victim.</li> </ol>                                                                                                                                                                                                                                                                   | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                                                              |
| 202300555<br><a href="#">Read Closing Report Here</a> | PO Spencer Wolf       | <ol style="list-style-type: none"> <li>2. Abuse of Authority - threatened to arrest the Victim.</li> <li>3. Discourtesy - was discourteous to the Victim.</li> <li>4. Offensive Language - made offensive remarks to the Victim.</li> </ol>                                                                                                                         | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with three (3) days' vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202300635<br><a href="#">Read Closing Report Here</a> | PO Richard Castellano | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against Victim 1.</li> <li>2. Force - used physical force against Victim 1.</li> <li>3. Abuse of Authority - threatened Victim 2 with the use of force.</li> </ol>                                                                                                                               | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                                                              |

| COMPLAINT                                             | OFFICER          | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   | REASON FOR RETAINMENT                                                                                                                                                                                  |
|-------------------------------------------------------|------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202300781<br><a href="#">Read Closing Report Here</a> | PO Corey Gresh   | <ol style="list-style-type: none"> <li>1. Discourtesy - spoke discourteously about the Victim.</li> <li>2. Offensive Language - made offensive remarks about the Victim.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                              | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p>    |
| 202300792<br><a href="#">Read Closing Report Here</a> | PO Huanxin Chen  | <ol style="list-style-type: none"> <li>1. Abuse of Authority - refused to provide his shield number to the Victim.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> <li>3. Offensive Language - made offensive remarks to the Victim.</li> </ol>                                                                                                                                                                                                                                                                                               | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with two (2) days’ vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p>  |
| 202301074<br><a href="#">Read Closing Report Here</a> | PO Juan Rivera   | <ol style="list-style-type: none"> <li>1. Force - used physical force against Victim 1.</li> <li>2. Force - used physical force against Victim 2.</li> <li>3. Abuse of Authority - issued an unlawful summons to Victim 2.</li> <li>4. Abuse of Authority - threatened to arrest Victim 1.</li> <li>5. Abuse of Authority - threatened to arrest Victim 2.</li> <li>6. Discourtesy - acted discourteously toward Victim 1.</li> <li>7. Discourtesy -acted discourteously toward Victim 2.</li> <li>8. Discourtesy - spoke discourteously to Victim 2.</li> </ol> | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with ten (10) days’ vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202301074<br><a href="#">Read Closing Report Here</a> | PO Justin Rivera | <ol style="list-style-type: none"> <li>1. Force - used physical force against Victim 2.</li> <li>2. Abuse of Authority - issued an unlawful summons to Victim 2.</li> </ol>                                                                                                                                                                                                                                                                                                                                                                                      | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days’ vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                                                                  | OFFICER            | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                 | REASON FOR RETAINMENT                                                                                                                                                                            |
|--------------------------------------------------------------------------------------------|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202301078<br><a href="#">Read Closing Report Here</a>                                      | PO Ahteramul Haque | 1. Abuse of Authority - took law enforcement action based upon actual or perceived age, gender, and race.                                                                                                                                                      | The Police Commissioner retained the case and issued no discipline to the officer.<br><br><a href="#">Read Final Documents Here</a>                                                              |
| 202301290<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Pedro Herrera   | 1. Abuse of Authority - searched the vehicle in which Victim 1 was an occupant.<br>2. Abuse of Authority - searched the vehicle in which Victim 2 was an occupant.<br>3. Abuse of Authority - took law enforcement action based upon actual or perceived race. | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with three (3) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a> |
| 202301290<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Thor Stone      | 1. Abuse of Authority - frisked Victim 2.<br>2. Abuse of Authority - questioned Victim 2.<br>3. Abuse of Authority - took law enforcement action based upon actual or perceived race.                                                                          | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with three (3) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a> |
| 202301370<br><a href="#">Read Closing Report Here</a>                                      | SGT Dino Vucetovic | 1. Abuse of Authority - detained the Victim.<br>2. Abuse of Authority - stopped the Victim.                                                                                                                                                                    | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with three (3) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a> |
| 202301513<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Stefan Weaver   | 1. Abuse of Authority - failed to provide the Victim with a business card.<br>2. Abuse of Authority - frisked the Victim.<br>3. Abuse of Authority - refused to provide his shield number to the Victim.<br>4. Abuse of Authority - stopped the Victim.        | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with six (6) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a>   |



| COMPLAINT                                                                                  | OFFICER                  | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                                                                                                    | REASON FOR RETAINMENT                                                                                                                                                                                  |
|--------------------------------------------------------------------------------------------|--------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202301667<br><a href="#">Read Closing Report Here</a>                                      | SGT Christopher Mcdonald | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>2. Abuse of Authority - forcibly removed the Victim to the hospital.</li> <li>3. Abuse of Authority - threatened to remove the Victim to the hospital.</li> </ol>                                                                                                                                                      | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with five (5) days’ vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p> |
| 202301978<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Benjamin Roman        | <ol style="list-style-type: none"> <li>1. Abuse of Authority - detained the Victim.</li> <li>2. Abuse of Authority - threatened to seize the Victim's property.</li> </ol>                                                                                                                                                                                                                                                                        | <p>The Police Commissioner retained the case and issued no discipline to the officer.</p> <p><a href="#">Read Final Documents Here</a></p>                                                             |
| 202302306<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Arthur Cenci          | <ol style="list-style-type: none"> <li>1. Abuse of Authority - interfered with Anonymous's use of a recording device.</li> <li>2. Abuse of Authority - refused to provide his name to Anonymous.</li> </ol>                                                                                                                                                                                                                                       | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p>    |
| 202302537<br><a href="#">Read Closing Report Here</a>                                      | PO Nicholas Toner        | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide an individual with a business card.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - frisked an individual.</li> <li>4. Abuse of Authority - frisked the Victim.</li> <li>5. Abuse of Authority - searched an individual.</li> <li>6. Abuse of Authority - stopped an individual.</li> </ol> | <p>The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with five (5) days’ vacation forfeiture.</p> <p><a href="#">Read Final Documents Here</a></p> |

| COMPLAINT                                             | OFFICER              | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                         | REASON FOR RETAINMENT                                                                                                                                                                           |
|-------------------------------------------------------|----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 202302600<br><a href="#">Read Closing Report Here</a> | PO Ishwarie Bangali  | 1. Abuse of Authority - propositioned the Victim.                                                                                                                                                                                                                                                                                      | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with one (1) day vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a>    |
| 202302857<br><a href="#">Read Closing Report Here</a> | PO Jonathan Baptiste | 1. Abuse of Authority - damaged the Victim’s property.<br>2. Abuse of Authority - at the 52nd Precinct stationhouse improperly used his body-worn camera.<br>3. Abuse of Authority - at the 52nd Precinct stationhouse threatened the Victim with the use of force.                                                                    | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline B with ten (10) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a> |
| 202303338<br><a href="#">Read Closing Report Here</a> | PO John Zaccara      | 1. Abuse of Authority - failed to provide the Victim with a business card.<br>2. Abuse of Authority - improperly used his body-worn camera.<br>3. Abuse of Authority - interfered with the Victim’s use of a recording device.<br>4. Discourtesy - spoke discourteously to the Victim.                                                 | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with two (2) days’ vacation forfeiture.<br><br><a href="#">Read Final Documents Here</a>  |
| 202308471<br><a href="#">Read Closing Report Here</a> | PO Kayla Carmona     | 1. Abuse of Authority - failed to provide the Victim with a business card.<br>2. Abuse of Authority - searched the Victim.<br>3. Abuse of Authority - searched the Victim.<br>4. Discourtesy - spoke discourteously to the Victim.<br>5. Offensive Language - spoke offensively regarding the Victim’s actual or perceived disability. | The Police Commissioner retained the case and issued discipline to the officer – Command Discipline A with training.<br><br><a href="#">Read Final Documents Here</a>                           |

#### SECTION IV: POLICE COMMISSIONER ADMINISTRATIVELY CLOSED CASES

The Police Commissioner will administratively close a case when an officer resigns, retires, or is disciplined by an internal NYPD process. Such cases require no further action from the APU. In the third quarter of 2024, the Police Commissioner administratively closed sixteen (16) cases.

| COMPLAINT                                                                                  | OFFICER                | CCRB SUBSTANTIATED ALLEGATIONS                                                                                                                                                                                                                                                                                                                                               | REASON FOR CASE CLOSURE |
|--------------------------------------------------------------------------------------------|------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------|
| 202003307<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Dean Andrews        | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority - did not obtain medical treatment for the Victim.</li> <li>3. Discourtesy - acted discourteously toward the Victim.</li> </ol>                                                                                                                     | Officer resigned.       |
| 202005055<br><a href="#">Read Closing Report Here</a>                                      | PO Adonis Long         | <ol style="list-style-type: none"> <li>1. Force - used a chokehold against the Victim.</li> <li>2. Force - used pepper spray against the Victim.</li> <li>3. Force - used physical force against the Victim.</li> <li>4. Discourtesy - acted discourteously toward the Victim.</li> <li>5. Untruthful Statement- provided a false official statement to the CCRB.</li> </ol> | Officer retired.        |
| 202008044<br><a href="#">Read Closing Report Here</a>                                      | PO Macaulay Maldarelli | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority – entered the Victim’s home</li> </ol>                                                                                                                                                                                                              | Officer retired.        |
| 202100991<br><a href="#">Read Closing Report Here</a>                                      | PO Matthew Sichel      | <ol style="list-style-type: none"> <li>1. Abuse of Authority - at the 25th Precinct stationhouse, did not process the Victim’s complaint regarding officers.</li> </ol>                                                                                                                                                                                                      | Officer resigned.       |
| 202102542<br><a href="#">Read Closing Report Here</a>                                      | SGT Richard Cho        | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Untruthful Statement- provided a misleading official statement to the CCRB.</li> </ol>                                                                                                                                                                                 | Officer retired.        |

|                                                                                            |                            |                                                                                                                                                                                                                                                         |                                                                                                |
|--------------------------------------------------------------------------------------------|----------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| 202105658<br><a href="#">Read Closing Report Here</a>                                      | PO Danilo Mcleish          | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened the Victim with the use of force.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                    | Officer resigned.                                                                              |
| 202107299<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Sebastian Koscialkowski | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                      | Officer resigned.                                                                              |
| 202201555<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Peter Aguilar           | <ol style="list-style-type: none"> <li>1. Abuse of Authority - frisked the Victim.</li> <li>2. Abuse of Authority - searched the Victim.</li> <li>3. Abuse of Authority - stopped the Victim.</li> </ol>                                                | Officer resigned.                                                                              |
| 202300182<br><a href="#">Read Closing Report Here</a>                                      | PO Mohamedzaid Palbalkar   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - took a recording of individuals.</li> <li>2. Discourtesy - spoke discourteously about individuals.</li> <li>3. Offensive Language - made offensive remarks about individuals.</li> </ol> | Adjudicated at Boro Level – was instructed in the proper performance of duty and/or procedure. |
| 202300715<br><a href="#">Read Closing Report Here</a>                                      | SGT Hua Jiang              | <ol style="list-style-type: none"> <li>1. Abuse of Authority - did not process the Victim's complaint regarding an officer.</li> <li>2. Abuse of Authority - improperly used his body-worn camera.</li> </ol>                                           | Officer retired.                                                                               |

|                                                                                            |                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                               |                                                            |
|--------------------------------------------------------------------------------------------|------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------|
| 202301727<br><a href="#">Read Closing Report Here</a>                                      | PO Jesse Trap          | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - frisked the Victim.</li> <li>4. Abuse of Authority - improperly used his body-worn camera.</li> <li>5. Abuse of Authority - stopped the Victim.</li> <li>6. Untruthful Statement - provided a false official statement to the CCRB.</li> </ol> | Adjudicated at Boro Level – issued a Command Discipline C. |
| 202301727<br><a href="#">Read Closing Report Here</a>                                      | PO Michael Crichlow    | <ol style="list-style-type: none"> <li>1. Abuse of Authority - failed to provide an individual with a business card.</li> <li>2. Abuse of Authority - frisked an individual.</li> <li>3. Abuse of Authority - improperly used his body-worn camera.</li> <li>4. Abuse of Authority - stopped an individual.</li> <li>5. Untruthful Statement - provided an inaccurate official statement to the CCRB.</li> </ol>                                              | Adjudicated at Boro Level – issued a Command Discipline C. |
| 202302011<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | PO Macaulay Maldarelli | <ol style="list-style-type: none"> <li>1. Abuse of Authority - entered the Victim's business location.</li> <li>2. Abuse of Authority - searched the Victim's business location.</li> </ol>                                                                                                                                                                                                                                                                   | Officer retired.                                           |

|                                                                                             |                        |                                                                                                                                                                                                                                                                                                                                                                                                               |                                                                                                |
|---------------------------------------------------------------------------------------------|------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|
| 202302572<br><a href="#">Read</a><br><a href="#">Closing</a><br><a href="#">Report Here</a> | PO Roy<br>Anuskiewicz  | <ol style="list-style-type: none"> <li>1. Force - used physical force against the Victim.</li> <li>2. Abuse of Authority - failed to provide the Victim with a business card.</li> <li>3. Abuse of Authority - searched the Victim.</li> <li>4. Discourtesy - spoke discourteously to the Victim.</li> <li>5. Offensive Language - made remarks to the Victim based upon the gender of the Victim.</li> </ol> | Officer retired.                                                                               |
| 202302850<br><a href="#">Read</a><br><a href="#">Closing</a><br><a href="#">Report Here</a> | DT3 Charles<br>Zucconi | <ol style="list-style-type: none"> <li>1. Abuse of Authority - interfered with the Victim's use of a recording device.</li> </ol>                                                                                                                                                                                                                                                                             | Adjudicated at Boro Level – was instructed in the proper performance of duty and/or procedure. |
| 202303619<br><a href="#">Read</a><br><a href="#">Closing</a><br><a href="#">Report Here</a> | PO Frank<br>Giordano   | <ol style="list-style-type: none"> <li>1. Abuse of Authority - threatened to arrest the Victim.</li> <li>2. Discourtesy - spoke discourteously to the Victim.</li> </ol>                                                                                                                                                                                                                                      | Officer resigned.                                                                              |

## SECTION V: APU ADMINISTRATIVELY CLOSED CASES

The SOL is the 18-month timeframe within which a disciplinary proceeding must be commenced against an officer.<sup>4</sup> Unless the case falls under the crime exception, once the SOL period elapses, a case may not proceed and will be closed without further action. In the third quarter of 2024, the APU administratively closed one (1) case for SOL reasons.

| COMPLAINT                                                                                  | OFFICER          | CCRB SUBSTANTIATED ALLEGATIONS                  | REASON FOR CASE CLOSURE |
|--------------------------------------------------------------------------------------------|------------------|-------------------------------------------------|-------------------------|
| 202206519<br><b>Closing Report Will be Available Upon Closure of all related APU Cases</b> | SGT Emily Harris | 1. Force - used a chokehold against the Victim. | Charges not served.     |

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<sup>4</sup> Under New York Civil Service Law § 75(4), a disciplinary proceeding cannot be commenced more than 18 months after the incident, but that time limitation does not apply where the alleged misconduct, as described in the Charges and Specifications, would constitute a crime.

The service of Charges and Specifications on a MOS is considered a commencement of a disciplinary proceeding.

## SECTION VI: THE APU DOCKET

The APU's docket slightly increased in the third quarter of 2024 compared to the second quarter of 2024. The sustained docket size is attributable to the increased number of Charges and Specifications recommended by the CCRB's Board pursuant to the Disciplinary Matrix and the overall increase in the number of complaints received by the Agency.

| Cases in Open Docket         |                  |                         |                       |                |        |
|------------------------------|------------------|-------------------------|-----------------------|----------------|--------|
| Period                       | Start of Quarter | Received During Quarter | Closed During Quarter | End of Quarter | Growth |
| 4 <sup>th</sup> Quarter 2023 | 650              | 87                      | 82                    | 655            | 0.8%   |
| 1 <sup>st</sup> Quarter 2024 | 655              | 103                     | 76                    | 682            | 4.1%   |
| 2 <sup>nd</sup> Quarter 2024 | 682              | 120                     | 102                   | 700            | 2.6%   |
| 3 <sup>rd</sup> Quarter 2024 | 700              | 106                     | 114                   | 692            | -1.1%  |



## SECTION VII: SERVICE OF RESPONDENTS

The average wait time for Respondents to be served decreased between the second and third quarters of 2024.

| Time to Serve Respondents    |                              |                                     |                                                     |
|------------------------------|------------------------------|-------------------------------------|-----------------------------------------------------|
| Period                       | Number of Respondents Served | Average Length to Serve Respondents | Average Length to Serve Respondents (Business Days) |
| 4 <sup>th</sup> Quarter 2023 | 54                           | 18                                  | 13                                                  |
| 1 <sup>st</sup> Quarter 2024 | 58                           | 25                                  | 18                                                  |
| 2 <sup>nd</sup> Quarter 2024 | 91                           | 28                                  | 20                                                  |
| 3 <sup>rd</sup> Quarter 2024 | 107                          | 23                                  | 16                                                  |

## SECTION VIII: CONCURRENCE AND DISCIPLINE

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind. Certain “Not Adjudicated” case outcomes, such as when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate.

| Q3 2024 APU Concurrence and Discipline |     |                       |     |
|----------------------------------------|-----|-----------------------|-----|
| Discipline Count                       | 71  | Concurrence Count     | 46  |
| No Discipline Count                    | 26  | Non-Concurrence Count | 51  |
| Not Adjudicated Count                  | 17  | Not Adjudicated Count | 17  |
| Discipline %                           | 73% | Concurrence %         | 47% |